

THE GOVERNMENT

No. 70/2025/ND-CP

THE SOCIALIST REPUBLIC OF VIETNAM

Independence - Freedom - Happiness

Hanoi, March 20, 2025

DECREE

Amending and supplementing a number of articles of the Government's Decree No. 123/2020/ND-CP dated October 19, 2020, on invoices and documents

Pursuant to the Law on Organization of the Government dated February 18, 2025;

Pursuant to the Law on Tax Administration dated June 13, 2019; the Law Amending and Supplementing a Number of Articles of the Law on Securities, Accounting Law, Law on Independent Audit, Law on the State Budget, Law on Management and Use of Public Property, Law on Tax Administration, Law on Personal Income Tax, Law on the National Reserve and Law on Handling of Administrative Violations dated November 29, 2024;

Pursuant to the Law on Value-Added Tax dated June 3, 2008; the Law on Amending and Supplementing a Number of Articles of the Law on Value-Added Tax dated June 19, 2013; the Law on Amending and Supplementing a Number of Articles of the Laws on Taxes dated November 26, 2014; the Law on Amending and Supplementing a Number of Articles of the Law on Value-Added Tax, the Law on Excise Tax and the Law on Tax Administration dated April 06, 2016; the Law on Value-Added Tax dated November 26, 2024;

Pursuant to the Accounting Law dated November 20, 2015;

Pursuant to the Law on E-Transactions dated June 22, 2023;

Pursuant to the Law on Information Technology dated June 29, 2006;

At the proposal of the Minister of Finance;

The Government hereby promulgates the Decree amending and supplementing a number of articles of the Government's Decree No. 123/2020/ND-CP dated October 19, 2020, on invoices and documents.

Article 1. Amending and supplementing a number of articles of the Government's Decree No. 123/2020/ND-CP dated October 19, 2020, on invoices and documents

1. To add Point e to Clause 1 Article 2 as follows:

“e) Overseas suppliers without permanent establishments in Vietnam engaged in e-commerce, digital platform-based business activities and other services that register to voluntarily use e-invoices in accordance with this Decree.”

2. To add Point c, Point dd to Clause 2; to amend and supplement Clause 5, Clause 11, Clause 12, and add Clause 14 to Article 3 as follows:

a) To add Point c, Point d to Clause 2 as follows:

“c) An e-invoice created by a cash register connected to transmit electronic data to the tax agency (hereinafter referred to as an e-invoice created by a cash register) means an invoice with the tax agency’s code or electronic data enabling the buyer to retrieve and declare information of the e-invoice from a cash register that is created by organization or individual selling goods and providing services from the cash register system, with data transmitted to the tax agency in the format specified in Article 12 of this Decree.

d) A cash register means a cash register system consisting of a synchronized electronic device or a system of multiple electronic devices integrated through information technology solutions with general functions such as processing payments, storing sales transactions, and recording sales data.”

b) To amend and supplement Clause 5 as follows:

“5. An e-document is displayed in electronic data form and issued by organizations and individuals responsible for tax withholding to taxpayers or by organizations collecting taxes, fees, and charges to taxpayers via electronic means in accordance with the law on fees, charges, and taxation.”

c) To amend and supplement Clause 11 and Clause 12 as follows:

“11. Destruction of invoices and documents

a) The destruction of e-invoices and e-documents is a measure to ensure that e-invoices and e-documents no longer exist in the information system and cannot be accessed or referenced.

b) The destruction of invoices printed on order by a tax agency and the destruction of printed-on-order and self-printed documents involve burning, shredding, tearing, or other methods that ensure the destroyed invoices and documents cannot be reused for their information and data.

Invoices and documents eligible for destruction are those that have reached the end of their retention period as prescribed in Article 6 of this Decree.

12. E-invoice service providers mean organizations providing solutions for generating, connecting, transmitting, receiving, storing, and processing e-invoices and e-documents. E-invoice service providers include: Organizations providing e-invoice solutions for sellers and buyers; organizations connecting,

transmitting, and storing e-invoice data with the tax agency.”

d) To add Clause 14 as follows:

“14. The General Department of Taxation's e-portal on e-invoices for taxpayers (hereinafter referred to as the General Department of Taxation's e-portal) means a centralized access point on the Internet provided by the General Department of Taxation to enable taxpayers, tax agencies, transmission organizations, and other agencies, organizations or individuals to carry out transactions related to e-invoices in accordance with regulations. The General Department of Taxation's e-portal shall send automatic feedback confirming the successful submission by taxpayer and notify the official receipt time of the taxpayer's dossiers, documents, and data; send notifications and results of resolving matters related to taxpayers' e-invoices (if any) through an e-invoice service provider (for cases where taxpayers register to use e-invoices via an e-invoice service provider) or via the taxpayer's account for use of the General Department of Taxation's e-portal or the email address registered with the tax agency (for cases where taxpayers register to use e-invoices directly on the General Department of Taxation's e-portal).”

3. To amend and supplement Clauses 1, 2, 3, 6, and 7 and to add Clause 9 to Article 4 as follows:

a) To amend and supplement Clauses 1, 2, 3, 6, and 7 as follows:

“1. When selling goods or providing services, the seller must issue an invoice to the buyer (including cases where goods or services are used for promotion, advertising, samples; goods or services given as gifts, donations, exchanges, salary payments to employees, or internal consumption (except for goods in internal circulation for further production); or goods issued under lending, borrowing, or return agreements), as well as in other cases where invoice issuance is required under Article 19 of this Decree. Invoices must contain all required details as prescribed in Article 10 of this Decree. In the case of e-invoices, they must follow the standard data format prescribed by the tax agency under Article 12 of this Decree.

2. When withholding personal income tax, collecting taxes, fees, or charges, organizations and individuals responsible for tax withholding, organizations collecting taxes, or fees or charges must issue a tax withholding document, tax receipt, or fee or charge receipt to the person whose income is subject to tax withholding, the taxpayer, or the fee or charge payer, which contains all required details as prescribed in Article 32 of this Decree. In case of e-documents, they must comply with the tax agency's standard data format. Where individuals authorize tax finalization, no tax withholding document is issued for personal income tax.

For individuals without a labor contract or with a labor contract of less than

3 months, the organization or individual paying the income must issue a tax withholding document for each tax withholding event or issue one certificate covering multiple withholdings in a tax year upon the individual's request. For individuals with a labor contract of 3 months or more, the organization or individual paying the income issues only one tax withholding document within a tax year.

3. Before using invoices or documents, enterprises, economic organizations, other organizations, business households, business individuals, tax withholding organizations, and organizations collecting taxes, fees, or charges must register their usage with the tax agency or notify the tax agency of issuance in accordance with Article 15 Article 34, and Clause 1 Article 36 of this Decree. For invoices and receipts printed on order by a tax agency, the tax agency shall carry out issuance notification in accordance with Clause 3 Article 24, and Clause 2 Article 36 of this Decree.”

“6. Invoice and document data related to the sale of goods, service provision, tax payment transactions, tax withholding, and payment of taxes, fees, and charges serve as a database for tax administration and the provision of invoice and document information to relevant organizations and individuals.

Sellers, service providers, e-invoice service providers, and tax agencies shall utilize the e-invoice database to implement measures encouraging consumers to request invoices when purchasing goods and services, such as: Loyalty programs, prize draw participation programs, lucky invoice programs. For the measure of encouraging individual consumers to request invoices when purchasing goods and services serving propaganda and awareness campaign for consumer conducted by the tax agency, the Ministry of Finance shall implement these campaigns using the annual state budget allocated for tax administration modernization and enhancement in accordance with the law on tax administration law.

7. Sellers of goods or service providers may authorize a third party to issue e-invoices for their sale of goods or service provision. Invoices issued by an authorized third party must indicate the name of the authorizing party. The authorization must be formalized in writing between the authorizing party and the authorized party, clearly detailing the authorized invoice (the authorization's purpose, duration, and payment method for the authorized invoices). Additionally, a notification must be sent to the tax agency when registering e-invoice usage. If the authorized invoice is an e-invoice without a tax agency code, the authorizing party must transmit the e-invoice data to the tax agency via a service provider. The Minister of Finance shall provide specific guidance on this matter.”

b) To add Clause 9 as follows:

“9. Where tax-, fee-, and charge- collecting organizations and service

providers jointly collect taxes, fees, charges, and payments for goods or services from a single customer, they may integrate the tax, fee, and charge receipt and the invoice into a single electronic format to be provided to the buyer. The integrated e-invoice must include all required details of both the e-invoice and the e-receipt and conform to the format prescribed by the tax agency. The goods seller, service provider, and tax-, fee-, and charge- collecting organization shall reach an agreement on which entity will issue the integrated e-invoice for the customer and must notify the tax agency directly managing them using Form No. 01/DKTD-HDDT in Appendix IA to this Decree. Revenue declaration by sellers and service providers and tax, fee, and charge declaration shall be carried out in accordance with the law on tax administration.”

4. To amend and supplement Clause 2 Article 5 as follows:

“2. For organizations and individuals selling goods, providing services, or having related rights and obligations

a) Engaging in fraudulent acts such as using illegal invoices, illegally using invoices, or falsifying invoices and documents for unlawful purposes;

b) Obstructing tax officials from performing their duties, specifically: Acts that harm the health or dignity of tax officials during invoice and document inspection and examination;

c) Hacking, falsifying or destroying the information system on invoices and documents;

d) Giving bribes or other acts relating to invoices or documents for self-seeking purposes;

dd) Failing to transmit electronic data to the tax agency as prescribed in this Decree.”

5. To add Point dd to Clause 1, amend and supplement Point b Clause 2, add Clause 2a after Clause 2, amend and supplement Clause 3 Article 8 as follows:

a) To add Point dd to Clause 1 as follows:

“dd) E-commerce activities, digital platform-based businesses, and other services provided by overseas suppliers without a permanent establishment in Vietnam.”

b) To amend and supplement Point b Clause 2 as follows:

“b) Organizations and individuals in non-tariff zones, when selling goods or providing services to the domestic market, or when selling goods or providing services between organizations and individuals within the non-tariff zone, or exporting goods and providing services abroad, must specify on the invoice: “For organizations and individuals in the non-tariff zone”.

Processing enterprises that engage in other business activities (besides processing activities as regulated by the law on industrial parks and export processing zones) and declare value-added tax (VAT) using the direct method shall use invoices as prescribed at Point a of this Clause. Processing enterprises that declare value-added tax using the withholding method shall use invoices as prescribed in Clause 1 of this Article.”

c) To add Clause 2a after Clause 2 as follows:

“2a. An e-commercial invoice applies to organizations, enterprises, and individuals (exporters) engaged in the export of goods or the provision of services abroad, provided that the exporter meets the requirements for transmitting e-commercial invoice data to the tax agency electronically. E-commercial invoices must comply with the content requirements specified in Article 10 of this Decree and the standard data format prescribed by the tax agency under Article 12 of this Decree.

If the exporter does not meet the requirements for electronic transmission of e-commercial invoice data to the tax agency, he/she may choose to issue an electronic VAT invoice or an electronic sales invoice.”

d) To amend and supplement Clause 3 as follows:

“3. E-invoices for the sale of public assets shall be used when selling or transferring public assets in accordance with the law on the management and use of public assets.”

6. To amend and supplement Clause 1, Clause 2; Point a, Point e, Point l, Point m, Point n Clause 4 Clause 9 and add Point p, Point q, Point r to Clause 4 Article 9 as follows:

a) To amend and supplement Clauses 1 and 2 as follows:

“1. The time of invoice issuance for the sale of goods (including the sale and transfer of public assets and the sale of national reserves) is the time of transfer of ownership or the right to use the goods to the buyer, regardless of whether payment has been received.

For the export of goods (including processing for export), the time of issuance of an e-commercial invoice, an electronic VAT invoice, or an electronic sales invoice shall be determined by the seller but must not be later than the next working day from the date the goods are cleared through customs in accordance with the customs law.

2. The time of invoice issuance for the provision of services is the time when the service provision is completed (including services provided to foreign organizations and individuals), regardless of whether payment has been received. If the service provider collects payment before or during the provision of the service, the time of invoice issuance is the time of payment collection (excluding

the case of collecting deposits or advance payments intended to secure the performance of service contracts for: Accounting, auditing, financial and tax consulting; valuation; surveying, technical design; supervision consulting; construction investment project preparation).”

b) To amend and supplement Points a, e, l, m and n Clause 4 as follows:

“a) For cases involving the sale of goods and provision of services in large quantities, occurring frequently, requiring time for data reconciliation between the enterprise selling goods or providing services and the customer or partner, including: Cases of direct support services for air transport, aviation fuel supply for airlines, electricity supply (except for subjects specified at Point h of this Clause), support services for railway and waterway transport, television services, television advertising services, e-commerce services, postal and delivery services (including agency services, collection and payment services), telecommunications services (including value-added telecommunications services), logistics services, information technology services (except for cases specified at Point b of this Clause) provided on a periodic basis, banking services (except for lending activities), international money transfers, securities services, electronic lottery, road use fee collection between investors and toll service providers, and other cases as guided by the Minister of Finance, the time of invoice issuance shall be the time of completion of data reconciliation between the parties, but no later than the 7th day of the following month after the service provision occurs or no later than 7 days from the end of the agreed period. The agreed period used as the basis for determining the quantity of goods and services provided shall be based on the agreement between the unit selling goods or providing services and the buyer.”

“e) For oil and gas exploration, exploitation, and processing activities: The time of invoice issuance for crude oil, condensate, and products processed from crude oil (including product off-take activities under Government commitments) shall be the time when the buyer and seller determine the official selling price, regardless of whether payment has been received.

For the sale of natural gas, associated gas, and coal gas transported through pipelines to the buyer, the invoice issuance time shall be the time when the buyer and seller determine the gas volume delivered for the month, but no later than the last day of the deadline for tax declaration and payment for the month in which the tax obligation arises, in accordance with the tax law.

If a Government guarantee and commitment agreement specifies a different invoice issuance time, the provisions of that agreement shall prevail.”

“l) The invoice issuance date for lending activities shall be determined based on the interest payment schedule as specified in the credit contract between the credit institution and the borrower, except where the interest is not collected at the due date and the credit institution records it in the off-balance sheet in

accordance with the credit law. In such cases, the invoice issuance date shall be the date the loan interest is actually collected from the borrower. In the case of prepayment of interest under a credit contract, the invoice issuance date shall be the date on which the prepaid interest is collected.

For foreign exchange agency activities and the provision of foreign currency collection and payment services by economic organizations of credit institutions, the invoice issuance date shall be the date of foreign exchange transactions or the completion of the foreign currency collection and payment service.

m) For passenger transportation services using taxicabs with fare calculation software as regulated by law: At the end of each trip, enterprises or cooperatives operating taxicab passenger transport services using fare calculation software shall issue e-invoices for customers and simultaneously transmit invoice data to the tax agencies as prescribed.

n) For medical examination and treatment facilities that utilize medical and hospital fee management software, where each medical examination, treatment service, imaging, or laboratory test transaction generates a payment receipt (for hospital fees or examination and testing fees) and is recorded in the information technology system, if the patient (the customer receiving medical services) does not request an invoice, the medical examination and treatment facility shall compile and issue an e-invoice at the end of the day based on medical examination and treatment information and payment receipts for the healthcare services provided during the day. If the customer requests an e-invoice, the medical examination and treatment facility shall issue an e-invoice to the customer.

The medical examination and treatment facility shall issue invoices to the social security agency at the time of settlement and reimbursement of medical examination and treatment costs for patients covered by health insurance.”

c) To add Point p, Point q and Point r to Clause 4 as follows:

“p) The invoice issuance date for insurance business activities shall be the date on which insurance revenue is recognized in accordance with the law on insurance business.

q) For traditional lottery ticket sales and instant lottery tickets sold in the form of pre-printed tickets with fixed denominations to customers, after retrieving unsold tickets and no later than before the next draw, the lottery business enterprise shall issue a single electronic VAT invoice with the tax agency's code for each agent (whether an organization or an individual) for the lottery tickets sold during the period and submit it to the tax agency for code issuance.

r) For casino and prize-winning electronic gaming businesses, the issuance of e-invoices must be completed no later than one day from the end of the revenue recognition day. At the same time, the casino and prize-winning electronic

gaming enterprises must transfer data on the total amount collected (from the exchange of gaming tokens at the cashier, gaming tables, and amounts collected from electronic gaming machines) after deducting the amounts refunded to players (due to winnings or unused tokens) according to Form 01/TH-DT in Appendix IA to this Decree, to the tax agency at the same time as the e-invoice data submission. The revenue recognition day is defined as the period from 00:00 to 23:59 of the same day.”

7. To amend and supplement Clause 5, Point a Clause 6, Clause 9, Point c Clause 14 Article 10; to add Point l to Clause 14, and add Clause 17 to Article 10 as follows:

a) To amend and supplement Clause 5 as follows:

“5. Buyer’s name, address, tax identification number or code of an entity in relationship with the state budget, or personal identification number

a) If the buyer is a business entity with a tax identification number (TIN), the buyer's name, address, and TIN on the invoice must match the information registered on the enterprise registration certificate, branch operation registration certificate, household business registration certificate, tax registration certificate, tax identification notification, investment registration certificate, or cooperative registration certificate. In case where the buyer is an entity with a state budget relationship, the invoice must display the code of an entity in relationship with the state budget.

In cases where the buyer’s name and address are too long, the seller may abbreviate certain commonly used terms on the invoice, such as: “Phường” (ward) to “P”; “Quận” (district) to “Q”; “Thành phố” (city) to “TP”; “Việt Nam” (Vietnam) to “VN”; “Cổ phần” (stock) to “CP”; “Trách nhiệm hữu hạn” (Limited liability) to “TNHH”; “Khu công nghiệp” (industrial park) to “KCN”; “Sản xuất” (production) to “SX”; “Chi nhánh” (branch) to “CN”, etc. However, the invoice must still ensure completeness of house number, street name, ward, district, city, and other identifying details to accurately reflect the enterprise name and address in compliant with its business registration and tax registration.

b) If the buyer does not have a tax identification number, the invoice shall not show the buyer’s tax identification number. In case of selling goods or providing specific services to individual consumers specified in Clause 14 of this Article, the invoice shall not show the buyer’s name and address. In case of selling goods or providing services to foreign customers to Vietnam, the address of the buyer shall be replaced with the information about the number of the passport or immigration documents and the nationality of the foreign customer. If the buyer provides their tax identification number or personal identification number, it must be included on the invoice.”

b) To amend and supplement Point a Article 6 as follows:

“a) Name, unit, quantity, unit price of goods and services

a.1) Names of goods and services: The names of goods and services shall be written in Vietnamese. In case of selling goods of various categories, the goods names shall include details of each category (for example: Samsung phones, Nokia phones; food and beverages, etc.). In case goods are subject to registration of use right or ownership right, the invoice shall show the specific codes and numbers of the goods as required by law. For example: Chassis number and engine number of cars or motorbikes; address, type, length, width, number of floors of houses, etc. In case of conducting transportation service business, the invoice must indicate the license plate number of the transport vehicle and the route (departure point - destination). For enterprises engaged in transportation services via digital platforms and e-commerce activities, the invoice must include the name of the transported goods, as well as the name, address, and tax identification number or personal identification number of the sender.

In case additional foreign words are needed, foreign words shall be put in parentheses () or immediately below Vietnamese lines and have a font size smaller than Vietnamese ones. In case goods and services are transacted with provisions on codes of goods and services, the names and codes of goods and services shall be written on the invoice.

a.2) Unit of calculation: The seller shall base on the nature and characteristics of the goods to determine the unit of the goods shown on the invoice in line with units of measurement (for example: tons, quintals, yens, kilograms, grams, milligrams, taels, ounces, pieces, items, units, boxes, cans, barrels, bags, packages, tubes, cubic meters (m³), square meters (m²), meters (m), etc.). For services, the invoice is not required to include a “unit of measurement” as the unit is determined based on each instance of service provision and its nature.

a.3) Quantity of goods or services: The seller shall record the quantity in Arabic numerals in terms of the above units. In cases where specific types of goods and services are supplied - such as electricity, water, telecommunications services, information technology services, television services, postal and delivery services, banking, securities, and insurance - which are invoiced on a periodic basis as prescribed, as well as medical examination and treatment services and other cases as guided by the Minister of Finance where invoices shall be issued after data reconciliation, the seller is allowed to use an accompanying statement attached to the invoice. This statement must be retained together with the invoice to facilitate inspection and verification by competent agencies.

In cases where goods and services are promoted in accordance with the commercial law or are given as gifts, donations, or presents in compliance with the law, an invoice shall be issued for the total value of the promoted, gifted,

donated, or presented goods and services, accompanied by a detailed list of such items. Organizations must retain dossiers relating to promotional, gifted, donated, or presented programs and provide them upon request by competent agencies, and shall take responsibility for ensuring the accuracy of transaction information and must submit a detailed summary of goods and services upon request by competent agencies. If a customer requests an invoice for each transaction, the seller must issue an invoice accordingly to that customer.

The invoice must clearly state “accompanied by statement No..., dated...”. The statement must include the seller’s name, tax identification number, and address, along with the name of the goods or services, quantity, unit price, total amount of goods or services sold, date of issuance, and the name and signature of the preparer. If the seller pays value-added taxes under the withholding method, the statement must contain the items “VAT rate” and “VAT amount.” The total payment amount must match the total amount recorded on the VAT invoice. Goods and services listed in the statement must be arranged in the order of sales transactions during the day. The statement must clearly indicate “accompanied by invoice No... dated...”.

a.4) Unit price of goods or services: The seller shall record the unit price of goods and services in terms of the above units. In cases where goods and services are listed in the statement accompanying the invoice, it is not required to include unit prices on the invoice.”

c) To amend and supplement Clause 9 as follows:

“9. The timestamp for digital signing on an e-invoice is the moment when the seller or buyer applies a digital signature on the e-invoice, displayed in the format of day, month, and year according to the Gregorian calendar. In cases where the timestamp of the digital signature on an issued e-invoice differs from the invoice issuance time, the digital signing timestamp and the submission time to the tax agency for code issuance (for e-invoices with a tax agency’s code) or the data transmission time to the tax agency (for e-invoices without a tax agency's code) must be no later than the next working day from the invoice issuance time (except for data submission under the summary table specified at Point a.1 Clause 3 Article 22 of this Decree). The seller shall declare taxes based on the invoice issuance time, while the tax declaration time for the buyer is when the invoice is received, ensuring full compliance with the format and content requirements stipulated in Article 10 of this Decree.”

d) To amend and supplement Point c and add Point l to Clause 14 as follows:

“c) For e-invoices issued for sales at supermarkets and shopping centers where the buyer is a non-business individual, the e-invoice is not required to include the buyer's name, address, tax identification number, or digital signature.

For e-invoices issued for the sale of petroleum products to individuals not engaged in business, the following details are not required: Buyer's name, address, tax identification number, and digital signature.”

“1) For e-invoices issued for casino business operations and prize-winning electronic games, the inclusion of the buyer's name, address, tax identification number, and digital signature is not required.”

dd) To add Clause 17 as follows:

“17. The VAT invoice cum tax refund declaration must comply with the content requirements specified in this Article and the guidelines for this Clause provided by the Minister of Finance.”

8. To amend the title of Article 11, and amend and supplement Article 11 as follows:

“Article 11. E-invoices generated from cash registers

1. Business households and business individuals as prescribed in Clause 1 Article 51 with annual revenue of VND 1 billion or more, Clause 2 Article 90, and Clause 3 Article 91 of the Law on Tax Administration No. 38/2019/QH14, as well as enterprises engaged in the sale of goods and provision of services, including those selling directly to consumers (shopping centers, supermarkets, retail stores (excluding automobiles, motorcycles, and other motor vehicles), food and beverage services, restaurants, hotels, passenger transportation services, direct support services for road transport, art, entertainment, recreation, cinema operations, and other personal services as defined in the Vietnamese Economic Sector System) must use e-invoices generated from cash registers connected for transmission of electronic data with the tax agency.

2. E-invoices generated from cash registers connected for transmission of electronic data with the tax agency must adhere to the following principles:

a) The invoice must be identifiable as one printed from a cash register connected for transmission of electronic data with the tax agency;

b) A digital signature is not required;

c) Expenses incurred for purchasing goods and services with e-invoices (or copies of e-invoices or information retrieved from the General Department of Taxation's e-portal) generated from cash registers shall be considered expenses with legally and sufficiently valid invoices and documents when determining tax obligations.

3. E-invoices generated from cash registers must contain the following details:

a) Name, address and tax identification number of the seller;

b) Buyer's name, address, tax identification number/personal identification

number/phone number (if requested by the buyer);

c) Description of goods, services, unit price, quantity, and total payment amount. If an organization or enterprise applies the withholding method, the e-invoice must explicitly indicate the selling price excluding VAT, VAT rate, VAT amount, and total payment amount including VAT;

d) Invoice issuance time;

dd) Tax agency's code or electronic data that enables the buyer to retrieve and declare information of an e-invoice generated from the cash register.

The seller shall provide e-invoices to buyers via electronic means (such as messages, emails, or other electronic formats) or offer a URL link or QR code for buyers to access and download the e-invoice.”

9. To amend and supplement Clause 3 Article 12 as follows:

“3. The General Department of Taxation shall develop the data components for e-invoice operations and the transmission-receipt method with the tax agency. For VAT invoices cum tax refund declarations, the General Department of Customs shall develop data components for information on invoices intended for customs agencies and commercial banks acting as tax refund agents. The General Department of Taxation shall publicize the data components for e-invoice operations and the transmission-receipt method with the tax administration agency for consistent application; provide tools to display the contents of e-invoices in accordance with this Decree.”

10. To amend and supplement Clause 2 and Point c, Point g Clause 3 Article 13 as follows:

a) To amend and supplement Clause 2 as follows:

“2. Regulations on the issuance and declaration of tax obligations in case tax agencies issue e-invoices with tax agency's code for each arising time as follows:

a) Type of invoice issued by each arising time

a.1) E-invoices with the tax agency's code issued by each arising time are sales invoices in the following cases:

a.1.1) Business households and business individuals, as stipulated in Clause 4 Article 91 of the Law on Tax Administration No. 38/2019/QH14, who fail to meet the requirement to use e-invoices with a tax agency's code but need invoices to provide to customers;

a.1.2) Non-business organizations with goods and service provision transactions;

a.1.3) Enterprises that have been dissolved, declared bankrupt, or had their tax identification number (TIN) deactivated but require invoices to be delivered

to buyers for the liquidation of assets;

a.1.4) Enterprises, economic organizations, business households and business individuals that directly pay VAT in the following cases:

a.1.4.1) Temporarily ceasing business operations but not yet completing procedures for tax identification number deactivation, requiring invoices to be delivered to buyers for the liquidation of assets or goods;

a.1.4.2) Temporarily ceasing business operations but requiring invoices to be delivered to buyers for performance of pre-existing contracts signed before the tax agency announced the business suspension;

a.1.4.3) Subject to enforcement measures by the tax agency in the form of invoice suspension;

a.1.4.4) Enterprises undergoing bankruptcy procedures but still conducting business activities under the supervision of the Court;

a.1.4.5) Enterprises, economic organizations, other organizations, business households and business individuals in the process of explanation or supplementing documents as prescribed at Point d Clause 2 Article 16 of this Decree;

a.2) Issuance of e-invoices with tax agency's codes by each arising time as VAT invoices in the following cases:

a.2.1) Enterprises, economic organizations, and other organizations subject to VAT under the withholding method, in the following cases:

a.2.1.1) Temporarily ceasing business operations but not yet completing procedures for tax identification number deactivation, requiring invoices to be delivered to buyers for the liquidation of assets or goods;

a.2.1.2) Temporarily ceasing business operations but requiring invoices to be delivered to buyers for performance of pre-existing contracts signed before the competent state agency announced the business suspension;

a.2.1.3) Subject to enforcement measures by the tax agency in the form of invoice suspension;

a.2.1.4) Enterprises undergoing bankruptcy procedures but still conducting business activities under the supervision of the Court;

a.2.1.5) Enterprises, economic organizations, and other organizations in the process of explanation or supplementing documents as prescribed at Point d Clause 2 Article 16 of this Decree.

a.2.2) Organizations and state agencies that are not subject to VAT under the withholding method, when conducting asset auctions (excluding the cases of public asset auctions as specified in Clause 3 Article 8 of this Decree), may be issued VAT invoices, for the purpose of delivering to the buyer, if the winning

bid price is determined as VAT-inclusive in the auction dossiers approved by the competent agency.

b) Enterprises, economic organizations, other organizations, business households and business individuals eligible for the issuance of e-invoices with tax agency's codes by each arising time shall submit a request for invoice issuance using Form No. 06/DN-PSDT in Appendix IA to this Decree, to the tax agency, and access the General Department of Taxation's e-portal to generate the e-invoice.

Enterprises, economic organizations, other organizations, business households and business individuals shall make tax declaration dossiers in accordance with the law on tax administration.

Taxpayers eligible for the issuance of sales invoices on a per-occurrence basis under Point a.1 Clause 2 of this Article must fully pay the taxes arising on the requested invoice in accordance with the law on VAT, personal income tax, enterprise income tax, or other payable amount under the law on tax administration, and other taxes and charges (if applicable).

Taxpayers eligible for the issuance of VAT invoices on a per-occurrence basis under Point a.2 Clause 2 of this Article must fully pay the VAT amount on the issued VAT invoice on a per-occurrence basis or any other payable amount in accordance with the law on tax administration.

After enterprises, economic organizations, other organizations, business households and business individuals fully pay their taxes or payable amount on the same working day or no later than the following working day, the tax agency shall issue the tax code on the e-invoice.

Enterprises, economic organizations, other organizations, business households and business individuals shall bear full responsibility for the accuracy of the information on the e-invoice with code issued by the tax agency on a per-occurrence basis. In cases where an e-invoice issued on a per-occurrence basis requires an adjustment or replacement invoice, enterprises, economic organizations, other organizations, business households and business individuals shall submit a request for the issuance of an e-invoice with the tax agency's code using Form No. 06/DN-PSDT in Appendix IA to this Decree, to the tax agency for the issuance of an adjusted or replacement e-invoice for the previously issued invoice. The issuance of an adjusted or replacement invoice shall comply with Article 19 of this Decree, and the payment of taxes and other state budget revenues based on the increased revenue difference on the invoice shall be carried out in accordance with the law on tax administration.

c) Determination of the tax agency responsible for issuing e-invoices with the tax agency's code on a per-occurrence basis

c.1) For organizations and enterprises: The tax agency managing the

locality where the organization or enterprise makes the tax or business registration, or where it is headquartered, or the locality stated in the establishment decision, or where the sale of goods or provision of services occurs.

c.2) For business households and business individuals

c.2.1) For business households and business individuals with a fixed business location: Business households and business individuals shall submit a dossier requesting the issuance of an e-invoice with the tax agency's code on a per-occurrence basis to the Tax Branch managing the locality where they conduct business activities.

c.2.2) For business households and business individuals without a fixed business location: A business household or business individual shall submit a dossier requesting the issuance of an e-invoice with the tax agency's code on a per-occurrence basis to the Tax Branch in the locality where the business individual resides or where the business household is registered for business."

b) To amend and supplement Point c, Point g Clause 3 as follows:

"c) Business establishments engaging having exported goods and services (including establishments processing goods for export) shall use an e-invoice when exporting goods and services: An electronic commercial invoice, an electronic VAT invoice, or an electronic sales invoice. The time of invoice issuance shall comply with Clause 1 Article 9 of this Decree.

When goods are transported to the border gate or the location for export procedures, the establishment shall use a warehouse release cum internal transport slip or an e-invoice as prescribed as a document for goods circulation in the market."

"g) In cases of asset transfers from the parent company to dependent accounting units and vice versa, between dependent accounting units within an organization; or asset transfers arising from division, separation, consolidation, merger, or conversion of the enterprise, the organization having transferred assets must have an asset transfer order accompanied by a set of dossiers on the origin of the assets and shall not be required to issue an invoice."

11. To amend and supplement Clause 1 and add Clause 1a after Clause 1, amend and supplement Clauses 2 and 4 Article 15 as follows:

a) To amend and supplement Clause 1 as follows:

"1. Enterprises, economic organizations, other organizations, business households and business individuals that are not subject to the cessation of invoice use under Clause 1 Article 16 of this Decree shall register for the use of e-invoices (including registration for e-invoices for the sale of public assets and e-invoices for the sale of national reserve goods) through an e-invoice service provider.



In cases where the use of e-invoices with the tax agency's code is exempt from service fees, the tax agency or the agency assigned to organize and handle public assets under the law on management and use of public assets may register for the use of e-invoices through the General Department of Taxation's e-portal or an e-invoice service provider authorized by the General Department of Taxation to provide e-invoices with the tax agency's code free of charge.

If an enterprise is an organization that connects and transmits e-invoice data directly to the tax agency, it shall register for the use of e-invoices through the General Department of Taxation's e-portal.

If an overseas supplier without a permanent establishment in Vietnam conducts e-commerce, digital platform-based business, or other services and voluntarily registers to use e-invoices under this Decree, it shall register for e-invoice use through the General Department of Taxation's e-portal dedicated to overseas suppliers without a permanent establishment in Vietnam.

The registration information shall follow Form No. 01/DKTD-HDDT in Appendix IA to this Decree.

The General Department of Taxation's e-portal shall send an electronic notification using Form No. 01/TB-TNDT in Appendix IB to this Decree regarding the receipt of e-invoice registration through an e-invoice service provider for enterprises, economic organizations, other organizations, business households and business individuals registering for use of e-invoices through an e-invoice service provider.

The General Department of Taxation's e-portal shall send an electronic notification using Form No. 01/TB-TNDT in Appendix IB to this Decree regarding the receipt of e-invoice registration via the email address registered with the tax agency for enterprises, economic organizations, other organizations, business households and business individuals, and overseas suppliers without a permanent establishment in Vietnam engaging in e-commerce, digital platform-based business, or other services in Vietnam who register for e-invoice use directly through the General Department of Taxation's e-portal."

b) To add Clause 1a after Clause 1 as follows:

"1a. In case where enterprises, economic organizations, other organizations, business households and business individuals register for e-invoice use:

a) Within one working day from the date of receiving the registration, the General Department of Taxation's e-portal shall automatically verify the information (including biometric data under the Government's regulations on electronic identification and authentication and the tax agencies' roadmap) of the legal representative, the representative of the business household or business individual, or the owner of a private enterprise registering for e-invoice use

between the enterprise registration and tax registration data with the National Population Database System or the Electronic Identification and Authentication System. If the information does not match, the General Department of Taxation's e-portal shall automatically send a Notification of rejection of the e-invoice registration dossier, specifying the unmatched data fields, to the taxpayer within the same working day or no later than the next working day for the latter to adjust the declared information or contact the police office to correct the information in the National Population Database System or the Electronic Identification and Authentication System. If the information matches, the General Department of Taxation's e-portal shall automatically send a request for confirmation to the taxpayer via the email address or phone number of the private enterprise owner, legal representative, or representative of the business household or business individual as stated in the tax or enterprise registration dossiers. The taxpayer shall be responsible for responding with confirmation within the same working day or no later than the next working day. If the taxpayer fails to confirm within the deadline or the confirmation is unsuccessful, the General Department of Taxation's e-portal shall automatically send a Notification of rejection of the e-invoice registration dossier to the taxpayer within the same working day or no later than the next working day. The tax agency shall apply biometric technology in the registration for e-invoice use in accordance with law.

b) If the taxpayer confirms within the prescribed deadline on the General Department of Taxation's e-portal and the taxpayer is not among the following cases: The legal representative, representative of the business household or business individual, or private enterprise owner has previously or is currently acting as a legal representative, representative of a business household or business individual, or private enterprise owner of another taxpayer whose tax identification number status is inactive at the registered business address, or of another taxpayer that have ceased operations but have not closed the tax identification number, or have temporarily suspended operations but have not fulfilled tax obligations; or the taxpayer has violated regulations on tax, invoices, and documents as guided by the Minister of Finance; then, no later than the next working day, the tax agency shall issue a Notification of acceptance of the e-invoice use registration as stipulated in Clause 2 of this Article.

c) If the information verification results are accurate, and the taxpayer has confirmed their registration on the General Department of Taxation's e-portal within the prescribed deadline, but the taxpayer is the legal representative, representative of the business household or business individual, or private enterprise owner previously or currently acting as a legal representative, representative of a business household or business individual, or private enterprise owner of another taxpayer whose tax identification number status is inactive at the registered business address, or of another taxpayer that have ceased operations but have not closed the tax identification number, or have temporarily

suspended operations but have not fulfilled tax obligations; or the taxpayer has violated regulations on tax, invoices, and documents as guided by the Minister of Finance; or the taxpayer is classified as high-risk in taxation as guided by the Minister of Finance; then, within one working day from the date of receipt of the taxpayer's e-invoice use registration, the tax agency shall issue a notification requesting the explanation or additional information and documents, using Form No. 01/TB-BSTT-NNT issued with Decree No. 126/2020/ND-CP, and send it to the taxpayer or the directly managing tax agency that conduct an on-site verification of the taxpayer's actual business activities at the registered address, in accordance with the law on tax administration.

The taxpayer shall provide an explanation or additional information and documents within 2 working days from the date of receipt of the tax agency's request for explanation and supplementation.

d) If the tax agency accepts the taxpayer's explanation and additional information and documents, or if the verification confirms that the taxpayer is operating at the registered address, the directly managing tax agency shall issue a notification accepting the e-invoice use registration. If the taxpayer fails to provide an explanation, or fails to provide satisfactory explanation within the prescribed deadline, or if the verification confirms that the taxpayer is not operating at the registered address, then no later than the next working day, the tax agency shall issue a notification rejecting the e-invoice use registration and state the reasons in accordance with Clause 2 of this Article.”

c) To amend and supplement Clause 2 as follows:

“2. The tax agency shall be responsible for sending electronic notifications using Form No. 01/TB-DKDT in Appendix IB to this Decree through an e-invoice service provider or directly notifying enterprises, economic organizations, other organizations, business households and business individuals regarding the acceptance or rejection of e-invoice use registration.

For an enterprise or economic organization registering to transmit e-invoice data directly to the tax agency under Point b Clause 3, Article 22 of this Decree, if the tax agency issues a notification accepting the e-invoice use registration using Form No. 01/TB-DKDT in Appendix IB to this Decree but has not yet coordinated with the General Department of Taxation on technical infrastructure configuration, testing of connection, and data transmission, then no later than 5 working days from the date the tax agency sends the notification using Form No. 01/TB-DKDT in Appendix IB, the organization must ensure it meets the technical infrastructure requirements and notify the General Department of Taxation for connection coordination. The implementation period is 10 working days from the date the General Department of Taxation receives the request from enterprise or organization. If the result of testing the connection and data transmission are successful, the enterprise or organization shall transmit e-invoice



data directly to the tax agency as stipulated in Article 22 of this Decree. If, after 5 working days from the date the tax agency sends the notification using Form No. 01/TB-DKDT in Appendix IB to this Decree, the enterprise or organization does not notify the General Department of Taxation for connection coordination or if the result of testing the connection and data transmission is unsuccessful, the enterprise or organization shall amend its e-invoice use registration using Form No. 01/DKTD-HDDT in Appendix IA to this Decree and transmit data through an intermediary organization that connects, receives, transmits, and stores e-invoice data with the tax agency.”

d) To amend and supplement Clause 4 as follows:

“4. In case of any changes to the registered e-invoice use information under Clause 1 of this Article, enterprises, economic organizations, other organizations, business households and business individuals shall update their information as follows:

a) If the taxpayer changes e-invoice usage information due to modifications regarding the legal representative, representative of business household or business individual, contributing member, or owner, the procedures for implementation shall follow Clause 1a of this Article.

b) If the taxpayer changes e-invoice use information not covered under Point a of this Clause, the General Department of Taxation's e-portal shall request confirmation from the taxpayer via email or phone number of the enterprise owner or legal representative according to the tax registration dossier information.

After modifying the information, enterprise, economic organization, another organization, business household or business individual shall submit the modified information to the tax agency using Form No. 01/DKTD-HDDT in Appendix IA to this Decree via the General Department of Taxation's e-portal or through an e-invoice service provider, except in cases where e-invoice usage is terminated in accordance with Clause 1 Article 16 of this Decree. The General Department of Taxation's e-portal shall receive the registration form for information changes, and the tax agency shall proceed following the provisions of Clause 2 of this Article.

c) If a parent company needs to access data from its branches or dependent units, it shall notify the tax agency directly managing the parent company using Form No. 01/DKTD-HDDT in Appendix IA to this Decree.”

12. To amend and supplement Clauses 1 and 2 Article 16 as follows:

“1. Enterprises, economic organizations, other organizations, business households and business individuals shall cease using e-invoices with the tax agency's code, e-invoices without the tax agency's code and e-invoices generated from cash registers under the following circumstances:

a) The enterprise, economic organization, other organization, business household, or business individual ceases the validity of its tax identification number;

b) The enterprise, economic organization, other organization, business household, or business individual is verified and notified by the tax agency as not operating at the registered address;

c) The enterprise, economic organization, other organization, business household, or business individual temporarily suspends business operations; temporarily ceases using e-invoices by submitting a written request to the tax agency (Form No. 01/DKTD-HDDT in Appendix IA to this Decree); a business household or business individual switches from the declaration method to the presumptive tax method or pays taxes on a per-occurrence basis as notified by the tax agency;

d) The enterprise, economic organization, other organization, business household, or business individual receives a notification from the tax agency regarding the cessation of e-invoice usage for the purpose of enforcing tax debt recovery;

dd) In cases where e-invoices are used for selling smuggled goods, prohibited goods, counterfeit goods, or intellectual property-infringing goods, which are detected by a competent agency and reported to the tax agency;

e) In cases where e-invoices are issued for fictitious sales of goods or provision of services with the purpose of appropriating funds from organizations or individuals, which are detected, prosecuted, and reported to the tax agency by a competent agency; and where the police agency, the procuracy, or the court issues a written request to the tax agency to suspend the use of e-invoices by the aforesaid organization or individual.

g) Cases where the business registration agency or a competent state agency requests an enterprise to suspend business activities in conditional business lines upon detecting that the enterprise fails to meet business eligibility conditions as prescribed by law, or where a competent agency detects and reports to the tax agency that a taxpayer has committed violations of tax and invoice regulations;

h) In cases where enterprises, economic organizations, other organizations, business households, or business individual using e-invoices generated from a cash register change their business lines, thereby failing to meet the conditions for using e-invoices generated from a cash register as prescribed in Clause 1 Article 11 of this Decree, the tax agency shall issue a notice requiring such taxpayers to cease using e-invoices generated from a cash register.

i) In the course of tax inspection and examination, if the tax agency determines that a taxpayer has committed tax evasion, has been established for

the purpose of illegal trading and use of e-invoices, or has illegally used e-invoices for tax evasion as prescribed, the tax agency shall issue a notice to cease the use of e-invoices; the taxpayer shall be handled in accordance with the law according to the procedures specified at Point c Clause 2 of this Article;

k) If the taxpayer is classified as a high-risk entity based on the taxpayer risk level, the tax agency shall suspend e-invoice use as stipulated at Point d Clause 2 of this Article.

2. The procedure for ceasing the use of e-invoices shall be as follows:

a) The General Department of Taxation's e-portal shall cease receiving e-invoices and shall not issue notifications on ceasing the use of e-invoices for taxpayers falling under the cases specified at Points a, b, and business households or business individuals switching tax calculation methods as specified at Point c Clause 1 of this Article, from the date the organization or individual terminates the validity of their tax identification number or from the date the tax agency issues a notice that the taxpayer has ceased operation at the registered address or a decision on tax debt enforcement is issued.

b) The General Department of Taxation's e-portal shall send an electronic notification on ceasing the use of e-invoices and ceasing the use of e-invoices generated from cash registers (using Form No. 01/TB-NSD under Appendix IB to this Decree) and shall cease receiving e-invoices and e-invoices generated from cash registers for taxpayers falling under the cases specified at Points c and h Clause 1 of this Article, upon receipt of a notification from a competent state agency regarding business suspension or a taxpayer's notification of business suspension or temporary suspension of e-invoice use.

c) The head of the directly managing tax agency shall issue an electronic notification on ceasing the use of e-invoices to taxpayers falling under the cases specified at Points e and i Clause 1 of this Article (using Form No. 01/TB-NSD under Appendix IB to this Decree) from the date the tax agency receives a notification from a competent agency.

d) The head of the directly managing tax agency shall send an electronic notification to taxpayers falling under the cases specified at Points dd and g Clause 1 of this Article within one working day after receiving a notification from a competent agency sent to the tax agency, or immediately after determining that the taxpayer falls under the category of very high tax risk as specified at Point k Clause 1 of this Article, to request the taxpayer to provide explanations or additional information and documents related to the use of e-invoices.

d.1) The taxpayer shall provide an explanation or additional information and documents within no more than 2 working days from the date on which the tax agency sends an electronic notification. The taxpayer may directly provide an explanation or additional information and documents at the tax agency or in

writing.

d.2) The taxpayer shall continue using e-invoices or provide additional explanations, specifically as follows:

d.2.1) In case the taxpayer has fully provided explanations or additional information and documents, thereby proving that the use of e-invoices complies with legal regulations, the taxpayer shall continue using e-invoices.

d.2.2) In case the taxpayer has provided explanations or additional information and documents but fails to prove that the use of e-invoices complies with legal regulations, the tax agency shall, on the same working day, send a second notification requesting the taxpayer to provide additional information and documents. The taxpayer shall provide an explanation or additional information and documents within no more than 2 working days from the date on which the tax agency sends the second electronic notification.

d.3) Upon the expiration of the deadline specified in the notification, if the taxpayer fails to provide an explanation or additional information and documents, the tax agency shall issue a notification on the suspension of the use of e-invoices with the tax agency's code or the suspension of the use of e-invoices without the tax agency's code, using Form No. 01/TB-NSD in Appendix IB to this Decree, and handle the case in accordance with regulations."

13. To amend the title of Article 19, and amend and supplement Article 19 as follows:

"Article 19. Replacement and adjustment of e-invoices

1. If an issued e-invoice is found to contain errors (including e-invoices with the tax agency's code and e-invoices without the tax agency's code that have been sent to the tax agency), the seller shall handle the issue as follows:

a) In case of errors related to the buyer's name or address without errors in the tax identification number or other details, the seller shall notify the buyer of the incorrect invoice and shall not be required to issue a new invoice. The seller shall notify the tax agency of the incorrect e-invoice using Form No. 04/SS-HDDT in Appendix IA to this Decree.

b) In case of errors related to the tax identification number, invoice amounts, tax rates, tax amounts, or incorrect specifications or quality of goods stated on the invoice, the e-invoice may be adjusted or replaced as follows:

b.1) The seller shall issue an adjusted e-invoice to correct the incorrect e-invoice.

The adjusted e-invoice must include the phrase: "Adjustment for Invoice Form No...., Serial No...., No...., dated..."

b.2) The seller shall issue a new e-invoice to replace the incorrect e-

invoice.

The replacement e-invoice must include the phrase: “Replacement for Invoice Form No...., Serial No...., No...., dated...”.

The seller shall digitally sign the adjusted or replacement e-invoice and send it to the buyer (in case of using e-invoices without the tax agency’s code) or submit it to the tax agency for coding before sending it to the buyer (in case of using e-invoices with the tax agency’s code).

If, within a month, the seller has issued multiple incorrect invoices containing the same incorrect information about the buyer, product name, unit price, or tax rate for the same buyer, the seller may issue a single adjusted or replacement invoice for all incorrect e-invoices issued within that month, attaching a list of incorrect invoices using Form No. 01/BK-DCTT in Appendix IA to this Decree.

Before adjusting or replacing the incorrect e-invoice as prescribed at Point b of this Clause, if the buyer is an enterprise, economic organization, other organization, business household, or business individual, the seller and buyer must prepare a written agreement specifying the incorrect details. If the buyer is an individual, the seller must notify the buyer or publish the notification on the seller’s website (if available). The seller shall retain the written agreement at the business unit and present it upon request.

c) In the aviation industry, invoices for ticket exchanges and refunds shall be considered adjusted invoices and do not need to contain the phrase “Increase/decrease for Invoice Form No...., Serial No...., dated...”. Air transport enterprises are permitted to issue their own invoices for ticket refund and exchange cases initiated by agents.

2. In case the tax agency detects that an e-invoice with the tax agency’s code or an e-invoice without the tax agency’s code contains errors, the tax agency shall notify the seller using Form No. 01/TB-RSDT in Appendix IB to this Decree so that the seller can review the errors.

The seller shall be responsible for reviewing the errors as per the tax agency’s notification and making adjustments or replacements to the invoice in accordance with Clause 1 of this Article.

3. If the seller submits a notification to the tax agency using Form No. 04/SS-HDDT in Appendix IA to this Decree, as stipulated at Point a Clause 1 of this Article, the General Department of Taxation’s e-portal shall automatically notify the receipt using Form No. 01/TB-SSDT in Appendix IB to this Decree.

4. Invoices issued to adjust e-invoices in the following cases:

a) For e-invoices that were correctly issued for the sale of goods or provision of services but, due to actual payment or finalization, there is a change

in value or quantity based on the conclusions of competent state agencies in accordance with relevant laws, the seller shall issue a new e-invoice for the difference based on the actual economic operations (a decrease is recorded as a negative (-) amount, while an increase is recorded as a positive (+) amount in accordance with reality).

b) In cases where commercial discounts are based on the quantity or sales volume of goods or services, the discount amount for goods or services already sold shall be adjusted on the sales invoice of the last purchase or the subsequent period, ensuring that the discount amount does not exceed the value of goods or services recorded on the invoice of the last purchase or the subsequent period, or an adjustment invoice may be issued, accompanied by a list of invoice numbers that need adjustment, including the amounts, and adjusted tax amounts. The list shall be retained at the unit and presented upon request by the tax agency or other competent state agencies. Based on the adjustment invoice, the seller and the buyer shall adjust their declared revenue, sales, output tax, and input tax for the period in which the adjustment invoice is issued.

c) Handling of e-invoices in case of returns of goods or services:

c.1) In case of goods returns: If the buyer returns all or part of the goods (including cases of exchanging goods that alter the value of the originally purchased goods), the seller shall issue an adjustment invoice, except where the parties agree that the buyer shall issue an invoice upon returning the goods. In such cases, the buyer shall issue an e-invoice to the seller, and the parties shall fulfill their tax obligations as per the regulations on the sale of goods.

c.2) In case the goods are assets subject to legal registration of ownership or usage rights, and the assets have already been registered under the buyer's name, the return must comply with relevant laws. If the buyer is an entity required to use e-invoices, the buyer shall issue an invoice to return the goods to the seller.

c.3) In case of refunding, reducing fees, or reducing insurance brokerage commissions and other deductible expenses in accordance with insurance business laws: Based on the previously issued invoice and a written agreement or record specifying the refunded or reduced insurance premium amount (excluding VAT), the VAT amount stated on the insurance invoice collected by the insurance enterprise (invoice serial number, date, and month), and the reason for the refund or reduction, the seller shall issue an adjustment invoice to the insurance policyholder, regardless of whether the refund has been processed or not. The adjustment invoice must clearly state the refunded or reduced insurance premium amount and the reason for the refund or reduction. This record shall be retained along with the insurance invoice at the enterprise and presented upon request.

For cases specified at Points c.1, c.2, and c.3, the seller and buyer must maintain complete dossiers and documents related to the return of goods or services and present them upon request.

c.4) In case the seller has issued an invoice upon receiving payment before providing services or has issued an invoice for collecting payment for real estate business activities, infrastructure construction, or housing construction for sale or transfer, but later, the transaction is canceled or terminated, or a part of the service provision is canceled, the seller shall adjust the issued e-invoice in accordance with Point b.1 Clause 1 of this Article.

d) In cases where a credit institution or a non-cash payment service provider (hereinafter referred to as a payment service provider) has issued an invoice for collecting card payment service fees, and a refund transaction later occurs, the credit institution or payment service provider shall issue an adjustment invoice in accordance with Clause 1 of this Article. The adjustment invoice does not need to include the phrase: “Adjustment for invoice No.... Form No... Serial No... Date... Month... Year...”

dd) For the provision of telecommunications services where customers use prepaid mobile telecommunication cards to pay for postpaid telecommunication services, donate via SMS, or other telecommunication services that are allowed to be paid using prepaid mobile telecommunication cards as prescribed by law, and where the telecommunications enterprise has already issued a VAT invoice upon selling the top-up card or completing the service provision as prescribed, the telecommunications enterprise shall rely on data from the summary list or a working record with the partner or customer to issue an adjustment invoice.

5. Application of adjusted and replacement invoices

a) In cases where an e-invoice was incorrectly issued and the seller has already handled it using the adjustment or replacement method as stipulated at Point b Clause 1 of this Article, then, another error is subsequently discovered, the seller shall continue to apply the same method used in the initial correction;

b) If an e-invoice is issued without an invoice form number or invoice serial number, and an error is found in the invoice number, the seller shall only issue an adjusted invoice.

c) For the values on the adjusted invoices: An increase shall be recorded as a positive (+) amount, and a decrease shall be recorded as a negative (-) amount, accurately reflecting the actual adjustment;

d) Adjusted invoices and replacement invoices for cases specified at Point b Clause 1 of this Article shall be additionally declared by both the seller and the buyer in the period in which the adjusted or replacement invoice was originally issued.

dd) Adjusted invoices for cases specified in Clause 4 of this Article shall be declared by the seller in the period in which the adjusted invoice is issued, while the buyer shall declare it in the period in which the adjusted invoice is received.”

14. To amend the title of Article 22, amend and supplement Clause 3 and add Clause 6 to Article 22 as follows:

a) To amend the title of Article 22 as follows:

“Article 22. Responsibilities of sellers of goods and service providers using e-invoices without the tax agency’s code”

b) To amend and supplement Clause 3 as follows:

“3. Transmission of issued e-invoice data without the tax agency’s code to the tax agency through the General Department of Taxation’s e-portal (either directly or via an e-invoice service provider).

a) Methods and time for transmitting e-invoice data

a.1) E-invoice data shall be transmitted in the form of an e-invoice data summary using Form No. 01/TH-HDDT under Appendix IA to this Decree in the following cases:

a.1.1) Provision of services in the fields of postal and telecommunications, insurance, banking and finance, air transportation, and securities.

a.1.2) Sale of goods that are electricity and water, provided that customer identification codes or taxpayer identification numbers (TINs) are available.

a.1.3) Sale of goods and provision of services by overseas suppliers without a permanent establishment in Vietnam that engage in e-commerce, digital platform-based business, and other services in Vietnam.

Sellers shall prepare an e-invoice data summary for goods sold and services provided on a monthly or quarterly basis (covering the period from the first to the last day of the month or quarter) using Form No. 01/TH-HDDT under Appendix IA to this Decree for submission to the tax agency no later than the deadline for filing the VAT declaration as prescribed in the Law on Tax Administration No. 38/2019/QH14 and its guiding documents.

In cases where a large volume of invoices is generated, the aggregated report shall be divided in accordance with the tax agency’s standard data format to ensure data transmission and receipt requirements.

For e-invoices submitted in an aggregated report, the seller shall update cancellation or adjustment information directly in the aggregated report of the subsequent periods instead of submitting a notification of incorrect e-invoices using Form No. 04/SS-HDDT under Appendix IA to this Decree to the tax agency.

For invoices issued to reflect total revenue generated from buyers being non-business individuals on a daily or monthly basis according to the detailed list, the seller shall only transmit the e-invoice data without the accompanying detailed list to the tax agency.

a.2) Handling of the e-invoice data summary already transmitted to the tax agency:

If the e-invoice data in the e-invoice data summary already transmitted to the tax agency is incomplete or incorrect, the seller shall submit a supplementary e-invoice data summary;

Adjustments to the e-invoice data in the summary must include the following information: invoice form number, invoice serial number, and invoice number in Column 14, “related invoice information” of Form No. 01/TH-HDDT in Appendix IA to this Decree (except for cases where e-invoices are not required to contain all details of the invoice form number, invoice serial number, and invoice number as stipulated in Clause 14 Article 10 of this Decree).

a.3) Method of full invoice content transmission applies to the sale of goods and provision of services not covered under Point a.1 of this Clause.

After fully completing the required invoice details as prescribed, the seller shall send the invoice to the buyer and simultaneously transmit it to the tax agency no later than the next working day from the date of invoice issuance.

b) Enterprises and economic organizations shall transmit e-invoice data to the tax agency in the data format prescribed in Article 12 of this Decree and as guided by the General Department of Taxation, either by direct transmission (for cases meeting the data connection standard requirements) or via an e-invoice service provider.

b.1) Direct transmission method

If the seller is an enterprise or economic organization meeting the following conditions, it shall transmit e-invoice data to the tax agency in the prescribed data format under Article 12 of this Decree and as guided by the General Department of Taxation through direct transmission:

b.1.1) Enterprises and economic organizations that use an average of 1,000,000 or more e-invoices per month (calculated based on the average number of invoices in the preceding year), have an information technology system that meets the standardized data format requirements under Clause 4 Article 12 of this Decree, and wish to transmit e-invoice data directly to the tax agency shall submit a written request along with supporting documents to the General Department of Taxation.

b.1.2) Enterprises and economic organizations operating under a parent-subsidiary model, with a centralized invoice data management system at the parent company, and intending for the parent company to transmit the entire e-invoice data, including that of its subsidiaries, to the tax agency via the General Department of Taxation’s e-portal, shall submit a request along with a list of subsidiaries to the General Department of Taxation for technical connection

implementation.

b.2) Transmission via an e-invoice service provider

Enterprises and economic organizations not falling under the cases specified at Point a of this Clause shall enter into a contract with an e-invoice service provider to organize the transmission of e-invoice data to the tax agency.”

c) To add Clause 6 as follows:

“6. Accessing the e-invoice system developed by the tax agency in compliance with the standardized data format prescribed in Article 12 of this Decree to issue invoices cum VAT refund declarations for business establishments selling goods eligible for VAT refunds.”

15. To add Article 22a after Article 22 as follows:

“Article 22a. Obligations and responsibilities of e-invoice service providers

1. Obligations and responsibilities of organizations providing e-invoice solutions for sellers and buyers:

a) Obligations:

a.1) Provide solutions for the creation, transmission, receipt, storage, and processing of e-invoice data, including e-invoices with the tax agency’s code generated from cash registers, and e-documents; transmit e-invoice data to the tax agency. In cases where an e-invoice service provider is not yet an organization connecting, receiving, transmitting, and storing e-invoice data with the tax agency, it shall transmit e-invoice data to the tax agency through using the services of an organization connecting, receiving, transmitting, and storing e-invoice data with the tax authority.

a.2) Ensure the timely and complete transmission and receipt of e-invoices and store transmission and receipt records among the parties involved in the transaction.

b) Responsibilities:

b.1) Publicly announce the operational methods and service quality on the service provider’s website.

b.2) Ensure the confidentiality of e-invoice information.

b.3) Notify service users at least 30 days in advance of any plan on termination or suspension of service provision, along with handling measures, to safeguard user rights.

b.4) Fulfill other obligations as agreed upon with the service users.

2. Obligations and responsibilities of organizations receiving, transmitting, and storing e-invoice data with the tax agency:

a) Obligations:

a.1) Provide services for receiving, transmitting, and storing e-invoice data with the General Department of Taxation after receiving it from service users (including e-invoice service providers that have not yet connected with the General Department of Taxation).

a.2) Assign tax agency codes when authorized by the tax agency as notified; provide e-invoices with tax agency's codes free of charge to subjects entrusted by the tax agency.

b) Responsibilities:

b.1) Establish a data transmission connection with the General Department of Taxation, ensuring continuity, security, and safety.

b.2) Publicly announce and notify the operational methods and service quality on the service provider's website.

b.3) Ensure the confidentiality of e-invoice information.

b.4) Promptly notify the General Department of Taxation of any issues affecting the provision of e-invoice data transmission services with the tax agency; cooperate with the General Department of Taxation in resolving any difficulties arising in the course of implementation.

b.5) Notify the General Department of Taxation and service users at least 30 days in advance of any plan on termination or suspension of service provision and propose handling measures to ensure service users' rights.

b.6) Fulfill other obligations as agreed upon with the General Department of Taxation and service users."

16. To amend and supplement Clause 1 Article 30 as follows:

"1. Documents in the management of taxes, fees, and charges by the tax agency include:

a) Tax withholding documents for personal income tax and tax withholding documents for business activities conducted on e-commerce and digital platforms.

b) Receipts, including:

b.1) Tax, fee, and charge receipts without a pre-printed face value;

b.2) Tax, fee, and charge receipts with a pre-printed face value;

b.3) Tax, fee, and charge receipts."

17. To amend and supplement Article 31 as follows:

"Article 31. Time of issuance of documents

1. At the time of personal income tax withholding or the collection of taxes,



fees, and charges, the organization withholding personal income tax or collecting taxes, fees, and charges must issue documents and receipts to the taxpayer whose income is subject to tax withholding or to the tax-, fee-, or charge-payer.

2. The timestamp of digital signatures on documents corresponds to the moment the organization or individual performing tax withholding or collecting electronic taxes, fees, and charges applies their digital signature, displayed in the format of day, month, and year according to the Gregorian calendar.”

18. To amend and supplement Clause 1, Point k Clause 2 and Clause 3 Article 32 as follows:

a) To amend and supplement Clause 1 as follows:

“1. For personal income tax withholding documents:

a) Name of the tax withholding document; withholding certificate form number, withholding certificate serial number, and withholding certificate sequential number;

b) Name, address, and tax identification number of the organization or individual making the income payment;

c) Name, address, phone number, and tax identification number of the income recipient (if the individual has been assigned a tax identification number) or personal identification number;

d) Nationality (if the taxpayer is not a Vietnamese citizen);

dd) Income amount, time of income payment, total taxable income, compulsory insurance contributions; charitable, humanitarian, educational support contributions, and withheld tax amount;

e) Date of issuance of the tax withholding document;

g) Full name and signature of the income payer.

In the case of electronic personal income tax withholding documents, the signature on the electronic certificate must be a digital signature.”

b) To amend and supplement Point k Clause 2 as follows:

“k) Receipts shall be presented in Vietnamese. If additional foreign language text is required, it must be placed in parentheses “()” to the right or directly below the Vietnamese text in a smaller font size.

Numbers on receipts shall be natural numbers: 0, 1, 2, 3, 4, 5, 6, 7, 8, 9.

The currency recorded on the receipt shall be Vietnamese dong (VND). If other state budget revenues are prescribed by law to be collected in foreign currency, they may be collected in foreign currency or in VND based on conversion from foreign currency according to the exchange rate specified in Clause 4 Article 3 of Decree No. 120/2016/ND-CP dated August 23, 2016, of the

Government, detailing and guiding the implementation of a number of articles of the Law on Charges and Fees.

When collecting fees and charges, if the list of fees and charges exceeds the number of lines on a single receipt, an accompanying statement may be prepared. The statement shall be designed by the fee- or charge-collecting organization to suit the characteristics of each type of fee and charge. The statement must clearly indicate “attached to receipt No... dated... month... year...”.

For fee- or charge-collecting organizations using e-receipts, if certain criteria on the e-receipt need to be adjusted to fit actual circumstances, the fee- or charge-collecting organization shall consult with the Ministry of Finance (General Department of Taxation, General Department of Customs) in writing for consideration and guidance before implementation.

In addition to the mandatory information required under this Clause, the fee- or charge-collecting organization may include additional information, including logos, decorative images, or advertisements, provided they comply with legal regulations and do not obscure or blur the mandatory content on the receipt. The font size of the additional information must not be larger than that of the mandatory content on the receipt.”

c) To amend and supplement Clause 3 as follows:

“3. The form number and document number shall follow the guidance of the Minister of Finance. The display format of e-documents shall comply with the guidance provided in Clause 10 Article 4 of Decree No. 11/2020/ND-CP dated January 20, 2020, of the Government, providing administrative procedures in the field of Treasury State, and guiding documents.”

19. To add Article 32a after Article 32 as follows:

“Article 32a. Regulations on receipt issuance and authorization of receipt issuance

1. Receipt issuance

The contents of the receipt must accurately reflect the economic operations. Receipts must be issued in sequential order from the smallest to the largest number.

The contents recorded on the receipt must be consistent across all copies bearing the same receipt number. If an error or damage occurs, the collector must not detach the receipt from the booklet. If it has already been detached, it must be accompanied by the incorrect or damaged receipt. When issuing receipts, the fee- or charge-collecting organization must affix its stamp on the upper left corner of the second copy (the copy provided to the payer of other revenues belonging to the state budget).

2. A receipt issued in accordance with the guidelines set forth in Clause 1 of this Article shall be a legitimate document for payment, accounting, and financial settlement.

A receipt that fails to comply with the guidelines set forth in Clause 1 of this Article shall be invalid for payment, accounting, and financial settlement.

3. Authorizing receipt issuance

a) A fee- or charge-collecting organization may authorize a third party to issue receipts. The authorization between the authorizing party and the authorized party must be in writing, and at the same time, a notification must be sent to the tax agency directly managing both parties using Form No. 02/UN-BLG of Appendix IA to this Decree no later than 3 days prior to the authorized party issuing receipts. In the case of e-receipts, both parties must notify the tax agency when registering the use of e-receipts, using Form No. 01/DKTD-CTDT of Appendix IA to this Decree;

b) The authorization document must include complete details on the authorized receipts (form, type, code, quantity (from No. ... to No. ...)); the purpose of authorization; the authorization period; the method of delivery or installation of the authorized receipts (in case of self-printed or e-receipts); and the payment method for authorized receipts;

c) The authorizing party must prepare an authorization notification containing all information on the authorized receipts, the purpose of authorization, and the authorization period, based on the signed authorization document. The notification must include the name, signature, and seal (if applicable) of the authorizing party's representative and be sent to the tax agency using Form No. 02/PH-BLG of Appendix IA to this Decree. Simultaneously, the notification must be publicly posted at the fee- or charge-collecting location and the authorized party's office;

d) The authorized receipts must still display the name of the fee- or charge-collecting organization (the authorizing party), and the authorizing party's seal must be affixed to the upper left corner of each receipt. However, if the receipt is printed using the authorized party's printing device or is an e-receipt, the seal and digital signature of the authorizing party are not required.

dd) In cases where a fee- or charge-collecting organization has multiple affiliated units that directly collect fees or charges, or multiple authorized entities using pre-printed receipts with the same code distributed to each unit across the entire system, the fee- or charge-collecting organization must maintain a book tracking the allocation of receipts to each affiliated unit and authorized entity. The affiliated units and authorized entities must use receipts sequentially from the smallest to the largest number within the allocated range;

e) The authorizing and authorized parties must compile periodic reports on

the use of authorized receipts. The authorizing party must submit a report on the use of receipts, including the receipts used by the authorized party, to the tax agency directly managing them in accordance with this Decree. The authorized party is not required to issue a receipt issuance notification or submit reports on the use of receipts to the tax agency;

g) In the event of early termination of the authorization, both parties must document the termination in writing, notify the tax agency, and publicly post the termination at the fee- or charge-collecting location.”

20. To amend and supplement Clauses 1 and 3 Article 33 as follows:

“1. The types of documents specified in Clause 1 Article 30 of this Decree must comply with the following format requirements:

a) The format of e-documents must use the eXtensible Markup Language (XML), which is designed for sharing electronic data among information technology systems;

b) The format of e-documents consists of two components: component containing professional data of the e-document; and component containing digital signature data;

c) The General Department of Taxation and the General Department of Customs shall develop and publish the components containing professional data of e-documents and digital signature data, as well as provide tools for displaying the contents of e-documents in accordance with this Decree.”

“3. E-documents must fully and accurately display all contents of the document to prevent any misinterpretation, ensuring that users can read them by using electronic means.”

21. To amend the title of Article 34, and amend and supplement Article 34 as follows:

“Article 34. Registration for the use of e-documents

1. Organizations and individuals that withhold personal income tax, withhold tax for business activities on e-commerce platforms and digital platforms, or collect taxes, fees, and charges must register for the use of e-documents through the General Department of Taxation’s or General Department of Customs’ e-portal or through an e-invoice service provider before using e-documents as prescribed in Clause 1 Article 30 of this Decree.

In cases where organizations or individuals making income payments are not subject to e-invoice application, or organizations and individuals making income payments use e-invoices with the tax agency’s code and are exempt from service fees under Clause 11 Article 1 of this Decree, they may choose to register for the use of electronic personal income tax withholding documents through the General Department of Taxation’s e-portal or through an e-invoice service

provider authorized by the General Department of Taxation to provide electronic personal income tax withholding documents free of charge.

Registration information shall follow Form No. 01/DKTD-CTDT in Appendix IA to this Decree.

The General Department of Taxation's or General Department of Customs' e-portal shall send a notification according to Form No. 01/TB-TNĐT in Appendix IB to this Decree regarding the receipt of e-document use registration via an e-invoice service provider, in cases where the registration is made through an e-invoice service provider.

The General Department of Taxation's or General Department of Customs' e-portal shall send an electronic notification according to Form No. 01/TB-TNĐT in Appendix IB to this Decree regarding the receipt of e-document use registration to tax-withholding organizations and individuals or organizations collecting fees and charges, via the registered email address with the tax agency, in cases where the registration is made directly on the General Department of Taxation's or General Department of Customs' e-portal.

2. Within one working day from the date of receipt of the e-document use registration, the tax administration agency shall send an electronic notification according to Form No. 01/TB-DKDT in Appendix IB to this Decree via the e-invoice service provider and directly to tax-withholding organizations and individuals or organizations collecting fees and charges regarding the acceptance or rejection of the e-document use registration.

3. From the time the tax administration agency accepts the registration for the use of e-documents as prescribed in this Decree, the organizations specified in Clause 1 of this Article must cease using previously issued e-documents in accordance with previous regulations and destroy any remaining unused paper documents (if any) as prescribed.

4. In case of changes to the information registered for the use of e-documents as specified in Clause 1 of this Article, tax-withholding organizations and individuals, as well as organizations collecting taxes, fees, and charges belonging to the state budget, shall change the information and resubmit it to the tax administration agency according to Form No. 01/DKTD-CTDT in Appendix IA to this Decree via the General Department of Taxation's or General Department of Customs' e-portal or through an e-invoice service provider. The General Department of Taxation's or General Department of Customs' e-portal shall receive the information change registration form, and the tax administration agency shall follow Clause 2 of this Article."

22. To add Article 34a and Article 34b after Article 34 as follows:

"Article 34a. Handling of issued e-documents

In case an issued e-document contains errors, the tax-withholding organization shall handle the issued e-document in a manner similar to the handling of issued e-invoices as stipulated in Article 19 of this Decree. Notification of incorrectly issued e-documents shall follow Form No. 04/SS-CTDT in Appendix IA to this Decree.

Article 34b. Responsibilities of organizations and individuals withholding personal income tax, organizations collecting taxes, fees, and charges when using e-documents

1. Manage usernames and passwords of accounts issued by the tax administration agency.

2. Create electronic personal income tax withholding documents and e-receipts for taxes, fees, and charges to be sent to the individuals subject to tax withholding and taxpayers, and bear legal responsibility for the legality and accuracy of the issued e-documents.

3. Transfer e-document data to the tax administration agency.

a) Transfer of electronic personal income tax withholding document data:

After fully completing the required information on the electronic personal income tax withholding document, the tax-withholding organization or individual shall send it to the individual subject to tax withholding and simultaneously to the tax agency on the same day the e-document is issued.

The tax-withholding organization or individual shall transfer the electronic personal income tax withholding document data to the tax agency in the data format prescribed in Article 33 of this Decree via an e-invoice service provider. If the tax-withholding organization is the organization connecting for direct e-invoice data transmission to the tax agency, it shall transfer the electronic personal income tax withholding document data through the General Department of Taxation's e-portal. Organizations and individuals making income payments that are not subject to e-invoice application, as well as those using e-invoices with the tax agency's code free of charge as prescribed in Clause 10 Article 1 of this Decree, may choose to transfer electronic personal income tax withholding document data via the General Department of Taxation's e-portal or through an e-invoice service provider authorized by the General Department of Taxation to provide electronic personal income tax withholding document services.

b) Organizations collecting taxes, fees, and charges shall submit a report on the use of receipts in accordance with Form No. BC26/BLDT in Appendix IA to this Decree to the tax administration agency within the same period as the submission of the tax and fee declaration (excluding customs fees and transit fees for goods, baggage, and means of transport) as stipulated in the Law on Tax Administration No. 38/2019/QH14 and its guiding documents.

4. Store and ensure the integrity of all e-documents and comply with the law on the safety and security of electronic data systems.

5. Follow the inspection and examination, and reconciliation by the tax administration agency and other competent agencies in accordance with law”.

23. To amend and supplement Clause 1 Article 35 as follows:

“1. The tax administration agency shall issue receipts printed on order (non-denominated type) for sale to fee- and charge-collecting organizations at prices ensuring reimbursement of printing and issuance costs.”

24. To amend and supplement Clauses 1, 2 and 4 of Article 36 as follows:

a) To amend and supplement Clauses 1 and 2 as follows:

“1. Before using printed-on-order or self-printed receipts, fee- and charge-collecting organizations shall prepare a receipt issuance notification and send it to the directly managing tax agency or the tax administration agency where the taxpayer is headquartered. The receipt issuance notification shall be submitted electronically to the tax administration agency.

2. Issuance of receipts by the tax administration agency

Receipts printed on order by the tax administration agency shall be subject to a receipt issuance notification before being sold or initially issued. The receipt issuance notification must be sent to all Tax Departments or Customs Departments nationwide within 10 working days from the date of its preparation and before the sale. The issuance of receipts must ensure that receipt numbers do not overlap within the same serial number.

In case a Tax Department or Customs Department has published the receipt issuance notification contents on the General Department of Taxation's or the General Department of Customs' website, it is not required to send the notification to other Tax Departments or Customs Department.

If there is any change in the content of the issued notification, the tax administration agency shall carry out the procedures for a new issuance notification as guided above.”

b) To amend and supplement Clause 4 as follows:

“4. Order and procedures for receipt issuance:

a) The receipt issuance notification and sample receipt must be submitted to the tax administration agency no later than 5 working days before the business organization starts using the receipts. The receipt issuance notification, including the sample receipt, must be clearly posted at the fee- and charge-collecting organization and the authorized or assigned fee- and charge-collecting entity throughout the period of receipt usage;

b) If, upon receiving the receipt issuance notification from the tax-, fee-, or

charge-collecting organization, the tax administration agency detects that the issuance notification does not meet the prescribed content requirements, it must, within 3 working days from the date of receipt of the notification, issue a written notice to the tax-, fee-, or charge-collecting organization. The tax-, fee-, or charge-collecting organization is responsible for making adjustments and reissuing the receipt issuance notification in compliance with regulations;

c) If a tax-, fee-, or charge-collecting organization issues receipts for the second time or more and there are no changes in the content and format of the receipts as previously notified to the tax agency, the sample receipt is not required to be resubmitted;

d) For receipt numbers that have been issued under a receipt issuance notification but remain unused and bear the pre-printed name and address, if there is a change in name or address without a change in the taxpayer identification number and the directly managing tax agency, and if the fee- and charge-collecting organization wishes to continue using the pre-printed receipts, it shall affix a stamp with the new name and address next to the pre-printed name and address information and submit a notification of information adjustment in the receipt issuance notification to the directly managing tax agency, using Form No. 02/DCPH-BLG in Appendix IA to this Decree.

In case of a change in business address resulting in a change in the directly managing tax agency, if the fee- and charge-collecting organization wishes to continue using the issued but unused receipts, it must submit a report on the use of receipts to the departing tax administration agency, stamp the new address on the receipts, submit a list of unused receipts using Form No. 02/BK-BLG in Appendix IA to this Decree, and notify the new tax administration agency of the adjustment in the receipt issuance notification (clearly specifying the issued but unused receipt numbers that will continue to be used). If the organization does not wish to use the issued but unused receipts, it shall cancel the unused receipt numbers, notify the departing tax administration agency of the receipt cancellation results, and submit a new receipt issuance notification to the new tax administration agency.”

25. To amend and supplement Clause 2 Article 38 as follows:

“2. The report on the use of receipts shall include the following details: Name of the unit, tax identification number (if any), and address; type of receipt; receipt form number and receipt serial number; opening balance, receipts purchased and issued during the period; number of receipts used, canceled, lost, or destroyed during the period; closing balance submitted to the tax administration agency. In case no receipts are used during the period, the report on the use of receipts shall indicate the number of receipts used as zero (=0). If the receipts were fully consumed in the previous period and the report on receipt usage was submitted with a zero (0) ending balance, and no notification for

issuance of receipts for tax, fee and charge collection is issued and no receipt is used during the period, the tax-, fee- or charge-collecting organization shall not be required to submit the report on the use of receipts.

If the tax-, fee- or charge-collecting organization authorizes a third party to issue receipts, it remains responsible for submitting the report on the use of receipts.

The report on the use of receipts shall be made using Form No. BC26/BLDT or Form No. BC26/BLG in Appendix IA to this Decree.”

26. To add Point g to Clause 3 Article 39 as follows:

“g) The procedure for destroying receipts for exported, imported, and transited goods, as well as for means of transport on exit, entry, and transit, shall be carried out in accordance with the provisions set forth in Points a, b, c, d, dd, and e of this Clause with the Customs Department.”

27. To amend and supplement Clause 1 Article 40 as follows:

“1. Organizations collecting taxes, fees, and charges, upon detecting the loss, fire, or damage of issued or unissued receipts, must prepare a report on the loss, fire, or damage and notify the directly managing tax agency. The report shall include the following details: name of the organization or individual responsible for the loss, fire, or damage of the receipt; tax identification number and address; basis for the loss, fire, or damage report; type of receipt; receipt form number; receipt serial number; from number - to number; quantity; copies of receipts, no later than 5 working days from the date the loss, fire, or damage occurred. In cases where the last day (the fifth day) falls on a public holiday as prescribed by law, the deadline shall be extended to the following working day.

The report on the loss, fire, or damage of receipts shall be made in accordance with Form No. BC21/BLG in Appendix IA to this Decree.”

28. To amend and supplement Clause 2 Article 46 as follows:

“2. Parties using e-invoice information include:

a) Enterprises, economic organizations, business households, and business individuals that are sellers of goods and providers of services; organizations and individuals that are buyers of goods and services;

b) State management agencies using e-invoice information to: carry out administrative procedures as prescribed by law; verify the legality of goods in circulation on the market; serve litigation, inspection, audit, and investigative activities;

c) Credit institutions using e-invoice information for tax-related procedures and payment procedures through banks;

d) E-invoice service providers;

dd) Organizations using e-documents for withholding personal income tax and e-documents for tax withholding for business activities on e-commerce and digital platforms;

e) Foreign tax authorities, in accordance with tax treaties to which the Socialist Republic of Vietnam is a contracting party.”

29. To amend and supplement Article 47 as follows:

“Article 47. Methods of exploiting and using e-invoice information via the e-portal

1. Parties using e-invoice information, including enterprises, economic organizations, business households, and business individuals that are sellers of goods and providers of services, as well as organizations and individuals that are buyers of goods and services, may exploit e-invoice information through the General Department of Taxation's e-portal.

2. Parties using e-invoice information, including state management agencies, credit institutions, and e-invoice service providers, may search and use e-invoice and e-document information within the scope, timeframe, responsibilities, and access rights to the e-invoice e-portal as stipulated in agreements between the parties.

Parties specified in Clause 2 of this Article shall designate a focal point responsible for registering the use of e-invoice information (hereinafter referred to as the registered focal point) and shall notify the General Department of Taxation in writing.

3. The General Department of Taxation and Tax Departments shall issue a maximum of two user accounts for using e-invoice information to users of agencies and organizations at the corresponding management level, in accordance with the agreements between the parties.”

30. To amend the title of Article 48, and amend and supplement Article 48 as follows:

“Article 48. Provision and search of e-invoice information

1. The e-invoice information provided shall include the contents of e-invoices as stipulated in Article 10 of this Decree and the status of e-invoices.

2. The tax agency shall provide e-invoice information in the form of documents or electronic data.”

31. To amend the title of Article 49, and amend and supplement Article 49 as follows:

“Article 49. Registration, modification of registration information, and revocation of access accounts to the e-portal for e-invoice information exploitation and use

1. The registered focal point of the information user shall submit one written request to the General Department of Taxation or the Tax Department to apply for new registration, modify registration information, or revoke an access account in accordance with Form No. 01/CCTT-DK in Appendix II to this Decree.

2. Within no more than 2 working days from the receipt of the written request, the General Department of Taxation or the Tax Department shall issue a new account, modify account information, or revoke the account and notify the information user in writing. In case of disapproval of account registration or the extension of the account validity period is not granted, a written explanation must be provided.

New accounts issued to individuals shall be notified via email.

3. The validity period of an access account to the e-portal, for both new registration and modification, shall be 12 months or as requested by the information user, but must not exceed 12 months from the date the General Department of Taxation or the Tax Department issues a written notification of registration results or account validity extension to the registered focal point of the information user.”

32. To amend and supplement Clauses 1 and 3 Article 50 as follows:

“1. The General Department of Taxation and Tax Departments shall revoke access accounts to the e-portal in the following cases:

- a) Upon request from the registered focal point of the information user;
- b) Expiration of the account’s validity period;
- c) Failure to use the account to access the e-portal for information inquiries for 6 consecutive months;
- d) Improper use of e-invoice information for purposes not aligned with the professional functions and duties of the information user or in violation of the law on state confidentiality protection.”

“3. At least 5 working days before the official termination date of the provision and use of e-invoice and e-document information (except in cases where the registered focal point of the information user submits a written request), the General Department of Taxation and Tax Departments shall issue an electronic notification to the information user regarding the termination of e-invoice and e-document information provision and use.”

33. To amend and supplement Clause 5 Article 52 as follows:

“5. In case of a temporary suspension of e-invoice information provision, the General Department of Taxation shall issue a notification on its e-portal on e-invoices to information users. Such notification must clearly specify the estimated

timeframe for the resumption of information provision activities.”

34. To amend and supplement Clauses 1 and 4 Article 53 as follows:

“1. Proper use of e-invoice information for purposes aligned with the professional functions and duties of the information user or in compliance with the law on state confidentiality protection. The information users are not allowed to provide information collected from tax agencies to the third party without obtaining consents from the tax agencies providing information or accounts.”

“4. Management and confidentiality of e-portal access accounts.”

35. To amend and supplement Article 54 as follows:

“Article 54. Funding for implementation

Funding for search, provision and use of e-invoice information by state management agencies prescribed in this Decree shall be allocated from the state budget based on annual estimates approved for agencies and units in accordance with law.”

36. To amend the title of Article 56, and amend and supplement Article 56 as follows:

“Article 56. Rights and responsibilities of buyers of goods and services

1. The buyer of goods and services shall have the following rights:

a) To request the seller to issue and deliver an invoice when purchasing goods or services;

b) To accurately provide the necessary information for the seller to issue the invoice;

c) To sign invoice copies that have been fully completed, in cases where the parties agree on the buyer’s signature on the invoice;

d) To access and receive the original e-invoice file from the seller;

dd) To use invoices legally as prescribed by law for business activities; to prove the right to use or ownership of goods and services; for lottery purposes or compensation claims as prescribed by law; to record accounting entries for the purchase of goods and services in accordance with the accounting law; to declare taxes; to register the right to use or own property; and to declare payments of the state budget capitals in accordance with legal regulations. The invoice used for these purposes must contain identifiable information about the buyer.

2. The buyer of goods and services shall have the following responsibilities:

a) To use invoices for their intended purposes;

b) To provide information stated on the invoice to competent agencies upon request. In cases where printed-on-order invoices issued by the tax agency are

used, the original invoice must be provided. If an e-invoice is used, regulations on accessing, providing, and using e-invoice information shall be complied with.”

37. To add Article 57a after Article 57 as follows:

“Article 57a. Responsibilities of customs offices in managing e-documents

1. The General Department of Customs shall be responsible for:

a) Developing a database on e-documents to serve tax administration and state management functions of other state agencies;

b) Announcing the types of documents that have been issued, reported as lost, or are no longer valid for use.

2. The Customs Departments shall be responsible for:

a) Managing the creation and issuance of documents by organizations that have registered the creation and issuance of documents with the customs offices within their management;

b) Inspecting and supervising the creation, issuance, and use of documents within their areas;

c) Monitoring and supervising the destruction of documents in accordance with the regulations of the Ministry of Finance within their areas.”

38. To amend and supplement Clause 3 Article 58 as follows:

“3. Organizations and individuals engaged in the production or importation of products subject to excise tax, which require tax stamps as prescribed by law, must scan the QR code for domestically produced products before they are consumed in the country, or products produced in other countries that are imported for the assurance of the connection of information regarding the printing and use of stamps and electronic stamps between producers, importers, and the tax agencies. Information on the printing and use of electronic stamps serves as the basis for the establishment, management, and development of the e-invoice database. Users of tax stamps shall bear the costs of printing and using the stamps in accordance with the regulations issued by the Minister of Finance.”

39. To add Clause 2a after Clause 2 Article 60 as follows:

“2a. In cases where organizations, business households, and business individuals subject to the use of e-invoices generated from cash registers under this Decree do not have a cash register due to failure to meet requirements on information technology infrastructure or solutions for issuing e-invoices from cash registers, the tax agencies shall develop support plans and measures, and notify taxpayers regarding the transition to application of e-invoices generated from cash registers. If a taxpayer, despite receiving the tax agencies’ support and notification regarding the transition to application of e-invoices generated from

cash registers, fails to make, such failure shall be considered a violation of invoice usage regulations. The tax agencies shall coordinate with competent agencies to handle the violation in accordance with law.”

40. To amend and supplement Article 61 as follows:

“Article 61. Implementation responsibility

1. Ministers, heads of ministerial-level agencies, heads of government-attached agencies shall, based on the assigned functions and tasks, implement this Decree.

2. The Ministry of Finance shall guide, organize the implementation of solutions of e-invoices generated from cash registers, and e-invoices for e-commerce activities.

3. The Ministry of Industry and Trade shall be responsible for implementing solutions to manage all e-commerce activities and coordinating with the Ministry of Finance to take e-invoice solutions for e-commerce activities in accordance with this Decree.

4. People's Committees of provinces and centrally-run cities shall direct agencies and units in localities to coordinate in implementing this Decree. People's Committees of provinces and centrally-run cities shall also be responsible for instructing People's Committees at all levels to cooperate with tax agencies in reviewing, classifying, and facilitating the transition to e-invoices generated from cash registers for taxpayers. If a taxpayer required to implement e-invoices generated from cash registers has not yet transitioned due to failure to meet requirement on information technology infrastructure, the tax agencies shall report to the People's Committee for timely support regarding information technology infrastructure. In cases where taxpayers required to implement e-invoices generated from cash registers fail to transition, the tax agencies shall report to the People's Committee for directing relevant local agencies and departments to coordinate in handling violations related to the failure to issue invoices for goods and services as required by law and handling business registration issues resulting from tax and invoice law violations. Tax agencies shall advise the People's Committee to coordinate with the Vietnam Consumer Protection Association in launching and implementing campaigns promoting civilized consumer behavior by encouraging consumers to request invoices when purchasing goods and services, aiming to disseminate the State's policies and guidelines.”

Article 2. Amending and supplementing a number of forms in the Appendix to Decree No. 123/2020/ND-CP, and annulling a number of provisions of Decree No. 123/2020/ND-CP

1. To add Forms No. 01/BK-DCTT, 01/TH-DT, and 04/SS-CTDT to Appendix IA; to add Form No. 01/TB-NSD to Appendix IB to this Decree.

2. To amend and supplement Forms No. 01/DKTD-HDDT, 04/SS-HDDT, 06/DN-PSDT, 01/TH-HDDT, BC26/BLDT, 01/DKTD-CTDT in Appendix IA; Forms No. 01/TB-TNDT, 01/TB-DKDT, 01/TB-SSDT, 01/TB-KTDL, and 01/TB-KTT in Appendix IB, and Form No. 03/TNCN in Appendix III to this Decree.

3. To replace the phrase “business individuals and households” with the phrase “business households and business individuals” in Article 2, Clause 4 Article 4, Article 14, Article 17, Article 23, Article 25, Article 27, Article 29 of Decree No. 123/2020/ND-CP.

4. To annul Clause 10 Article 3; Point g Clause 4 Article 9; Clause 2 Article 33; Article 37; Clause 2 Article 50; Article 51; Clauses 3 and 4 Article 52; Clause 5 Article 53.

Article 3. Effect and responsibility for implementation

1. This Decree takes effect from June 1, 2025.

2. The Minister of Finance shall guide the implementation of Clauses 3, 6, 7, 11, 18, 37 and 38 Article 1 of this Decree and other cases as required.

3. Ministers, heads of ministerial-level agencies, heads of government-attached agencies, chairpersons of People’s Committees of provinces and centrally-run cities, and related organizations and individuals shall implement this Decree./.

**ON BEHALF OF THE GOVERNMENT
FOR THE PRIME MINISTER
THE DEPUTY PRIME MINISTER**

Ho Duc Phoc